

1.

CASE #	CASE NAME	HEARING NAME
CVPS2402052	WONG VS AUERBACH	HEARING RE: MOTION FOR AN ORDER TO SHOW CAUSE RE: APPOINTMENT OF GUARDIAN AD LITEM FOR PLAINTIFF AND CROSS-DEFENDANT BERTHA WONG BY BRUCE AUERBACH

Tentative Ruling: No tentative ruling, a hearing shall be conducted.

OSC re proof of service calendared for 7.02.26 is vacated

2.

CASE #	CASE NAME	HEARING NAME
CVPS2402052	WONG VS AUERBACH	DEMURRER ON 3RD AMENDED CROSS-COMPLAINT OF BRUCE AUERBACH BY CROSS-DEFENDANTS DEBBIE CHAMBERLAIN, RODNEY CHAMBERLAIN, AND WONG FARMS, LLC JOINDER OF CROSS-DEFENDANTS WONG AND WEINGARTEN

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Kattelman* (1994) 8 Cal. 4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Direct claims of Desert Hydroponics:

Cross-Complainants do not dispute that the claims alleged in the Third Amended Cross-Complaint are direct claims purportedly brought by Desert Hydroponics, LP, by itself and not derivative claims brought by Bruce Auerbach. As explained by Cross-Defendants, they could not be, because the Third Amended Cross-Complaint must be filed in the name of the partner and name of the partnership itself as a cross-defendant to properly allege derivative claims, neither of which was done here. (See *Everest Investors 8 v. McNeil Partners* (2003) 114 Cal.App.4th 411, 425.) Accordingly, the Third Amended Cross-Complaint only includes direct claims alleged against Cross-Defendants, and any arguments that apply to derivative claims rather than direct claims are inapposite and are disregarded.

Cross-Complainants contend that the direct claims alleged in the Third Amended Cross-Complaint by Desert Hydroponics should be permitted because “the Third